

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC,
COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC., MSC
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN SHIPPING
COMPANY (USA) INC., as
agent for Mediterranean Shipping Company S.A., and TOTAL TERMINALS
INTERNATIONAL, LLC,
RESPONDENTS.

**MEDITERRANEAN SHIPPING COMPANY S.A. and
MEDITERRANEAN SHIPPING COMPANY (USA) INC.’S
MOTION FOR EXTENSION OF TIME TO
ANSWER CROSS-COMPLAINT OF FEDEX
TRADE NETWORKS TRANSPORT &
BROKERAGE, INC.**

Pursuant to 46 C.F.R. §§502.69 and 502.71, Respondents and Cross-Respondents MSC Mediterranean Shipping Company, S.A.¹ and Mediterranean Shipping Company (USA) Inc. (“MSC”) hereby move for an extension of time to answer the Cross-Complaint filed by Respondent and Cross-Complainant FedEx Trade Networks Transport & Brokerage, Inc. (“FTN”).

This proceeding was initiated on or about May 14, 2024, when AirBoss Defense Group, LLC (“ADG”) filed its verified complaint. MSC filed a motion to dismiss or to stay the proceeding on May 31, 2024. On that same date, FTN filed a motion to dismiss or for summary judgment. The dispositive motions of MSC and FTN remain pending.

¹ Incorrectly identified as Mediterranean Shipping Company, S.A. in the Complaint.

Because MSC's initial responsive pleading was a motion to dismiss ADG's complaint, it has not yet filed an answer to that complaint. If MSC's motion to dismiss is denied, it will be required to answer ADG's complaint within ten (10) days of the service of the order denying MSC's motion. 46 C.F.R. §502.62(b)(1).

FTN filed its cross-complaint on November 1, 2024. MSC's answer to the cross-complaint is therefore due on November 26, 2024. The cross-complaint essentially alleges that if FTN is liable to ADG, then MSC is liable to FTN.

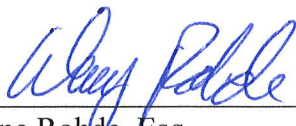
If the dispositive motions of MSC and FTN are granted, the cross-complaint will be moot. There is no purpose to be served by requiring MSC to answer a cross-complaint that may become moot, particularly not when that answer would be required to be filed before the answer to the original ADG complaint.

Accordingly, MSC hereby respectfully moves that the deadline for the filing of its answer to the cross-complaint – if one is required – be the same as the deadline for its answer to the original ADG complaint, i.e., ten (10) days after an order denying the motion to dismiss is served.

Granting this motion will avoid the illogical requirement to answer the cross-complaint prior to answering the original complaint. Further, granting this motion will not delay this proceeding in any way.

Pursuant to 46 C.F.R. §502.71, counsel for MSC has consulted with counsel for FTN and ADG, neither of whom expressed any objection to this motion.

Respectfully submitted,

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Dated: November 20, 2024

CERTIFICATE OF SERVICE

I do hereby certify that I have delivered a true and correct copy of the foregoing motion to the parties to this proceeding via email transmission on this 20th day of November, 2024.

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